

Tentative Rulings and Resolution Review Hearings
June 15, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

BRINGHURST, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206683

Tentative Ruling on Motion to Compel Further Responses: Defendants FCA US, LLC and Crown Dodge Chrysler Jeep Ram seek an order compelling Plaintiffs Chad and Clair Bringhurst to provide further responses to Defendant's Requests for Production, Set One. Defendants also request monetary sanctions. Plaintiff opposes the motion on the grounds that it is mooted by the service of verified responses on June 2, 2026.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

Here, Defendant has provided evidence that it propounded Requests for Production on November of 2025. Plaintiff provided unverified responses on December 15, 2025. When responses are unverified, case law provides that is the same as serving no responses at all. (*Appleton v Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff has provided evidence that it served verified responses on June 2, 2026, after this Motion to Compel was filed. While providing verified responses renders the motion to compel moot, sanctions are still available per CRC 3.1348(a). While the Court has considered Plaintiff's explanation for the failure to serve verified responses, it does not find substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Defendant was forced to bring this motion to prompt compliance. Therefore, sanctions are warranted. Defendant seeks sanctions of \$2,260.00. This consists of 5.5 hours attorney hours expected to be spent on this motion at a rate of \$400 per hour, plus a \$60 filing fee. The Court will reduce the hours by 1

because no reply was filed. If counsel for Defendant does not appear today the Court will reduce the attorney hours by an additional hour. Sanctions of \$1,860.00 are awarded (reduced to \$1,460 *only if* Defense counsel does not appear at today's hearing, because the estimated attorney time includes appearance today).

The Motion to Compel Further Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,860.00. Defendant's proposed order will be modified and executed.

CONE VS. MJB WELDING SUPPLY, INC

CASE NUMBER: 25CV-0208678

Tentative Ruling on Motion to Dismiss Entire PAGA Action: Plaintiff Isaiah Cone moves to dismiss Plaintiff's representative PAGA claims against Defendant MJB Welding Supply, Inc., without prejudice. Plaintiff also moves to dismiss Plaintiff's individual PAGA claims against Defendant with prejudice. Plaintiff has received no consideration for the dismissal of the representative PAGA claims. Potential aggrieved employees have not been notified of this action. The Motion is **GRANTED**. The proposed order will be executed. All future dates, including today's 1:30 p.m. Mandatory Settlement Conference are **VACATED**. The clerk is directed to vacate all future dates and close the file. No appearances are necessary on today's calendar.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on May 12, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; and (5) the Complaint in Shasta County case 209540. The request is granted pursuant to Evid. Code §§ 452 and 453.

Defendant further requests the Court take judicial notice of the First Amended Complaint in Shasta County case 209540. The request is denied. The request was made on June 8, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiffs, who did not have the opportunity to oppose.